

# An Act

ENROLLED SENATE  
BILL NO. 1326

By: Coleman of the Senate

and

Hall of the House

An Act relating to liens; amending 42 O.S. 2021, Sections 196 and 197.1, which relate to the Self-Service Storage Facility Lien Act; permitting electronic delivery and acceptance of rental agreements; providing for mode of acceptance in certain circumstance; providing timeline for disposal and sale of certain property; providing notice requirements; making language gender neutral; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Self-Service Storage Facility Lien Act

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 42 O.S. 2021, Section 196, is amended to read as follows:

Section 196. A. Where a rental agreement, as defined in Section 192 of this title, is entered into between the owner and the occupant, the owner of a self-service storage facility and his or her heirs, executors, administrators, successors, and assigns have a lien upon all personal property located at the self-service storage facility for rent, late fees, labor, or other charges, present or future, in relation to the personal property and for expenses necessary for its preservation or expenses reasonably incurred in its sale or other disposition pursuant to the Self-Service Storage Facility Lien Act. A rental agreement may be delivered and accepted electronically.

B. The lien attaches as of the date the personal property is brought to the self-service storage facility and continues ~~so~~ as long as the owner retains possession and until the default is corrected, or a sale is conducted, or the property is otherwise disposed of to satisfy the lien.

C. A facility or unit owner may charge a tenant a reasonable late fee for each period that the tenant does not pay rent due under the rental agreement. The amount of the late fee and the conditions for imposing such a fee shall be stated in the rental agreement or in an addendum to the agreement. For purposes of this subsection, a late fee not to exceed the greater of Twenty Dollars (\$20.00) or twenty percent (20%) of unpaid rent is considered reasonable.

D. The rental agreement shall contain a provision directing the occupant to disclose any lienholders with an interest in property that is or will be stored in a self-service storage facility.

E. If the personal property is a vehicle, watercraft, or trailer and ~~rent and other charges remain unpaid~~ the occupant is in default for sixty (60) days, the facility owner may have the vehicle, watercraft, or trailer towed from the self-service storage facility. If the vehicle, watercraft, or trailer is towed from the self-service storage facility, the facility owner shall not be liable for the vehicle, watercraft, or trailer or for any damages to the vehicle, watercraft, or trailer once the towing company takes possession of the property.

F. If the occupant fails to sign a rental agreement within thirty (30) days of the delivery of the written agreement from the owner to the occupant by in-person delivery, first-class mail to the last-known address of the occupant, or, if mutually agreed between the owner and occupant in the rental agreement or in an addendum to the rental agreement, by electronic mail, the occupant's payment of rent or continued use of the storage space shall be deemed an acceptance of the rental agreement. The rental agreement shall be enforceable against the occupant as if it had been signed by the occupant.

SECTION 2. AMENDATORY 42 O.S. 2021, Section 197.1, is amended to read as follows:

Section 197.1. A. If the occupant ~~abandons or surrenders possession of the self-service storage facility and leaves~~ has left household goods, furnishings, fixtures, or any other personal property in the self-service storage facility at the end of the rental agreement, the owner may take possession of the property, and if, in the judgment of the owner, the property has no ascertainable or apparent value, the owner may dispose of the property without any duty of accounting or any liability to any party.

B. If the occupant ~~abandons or surrenders possession of the self-service storage facility and leaves~~ has left household goods, furnishings, fixtures, or any other personal property in the self-service storage facility for a period of thirty (30) days or longer following the end of the rental agreement, the owner may take possession of the property, and if, in the judgment of the owner the property has an ascertainable or apparent value, ~~such property left with the owner for a period of thirty (30) days or longer shall be conclusively determined to be abandoned and as such~~ the owner may dispose of ~~said~~ the property in any manner which he or she deems reasonable and proper without liability to the occupant or any other interested party; however, before the property is disposed of, the owner shall provide written notice to the occupant, by certified mail with return receipt requested or by first-class mail, and the owner may dispose of the property fifteen (15) days after the owner ~~receives the return receipt document or fifteen (15) days after the owner receives a communication from the United States Post Office that the written notice was not claimed by the addressee, whichever period occurs first~~ has delivered the notice.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of February, 2026.

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Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

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Presiding Officer of the House  
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_

Approved by the Governor of the State of Oklahoma this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this \_\_\_\_\_

day of \_\_\_\_\_, 20\_\_\_\_\_, at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

By: \_\_\_\_\_